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PART II

Statutory Notifications (S.R.O.)

GOVERNMENT OF PAKISTAN

**CABINET SECRETARIAT
(Cabinet Division)**

NOTIFICATION

Islamabad, the 18th June, 2004

NATIONAL DOCUMENTATION CENTRE

S.R.O. 514(1)/2004.—In exercise of the powers conferred by section 25 of the Freedom of Information Ordinance, 2002 (Ordinance No. XCVI of 2002) the Federal Government is pleased to make the following rules, namely:—

THE FREEDOM OF INFORMATION RULES, 2004

1. **Short title, application and commencement.**—(1) These rules shall be called the Freedom of Information Rules, 2004.

(2) They shall apply to public bodies.

(3) They shall come into force at once.

(1685)

Price : Rs. 05.00

[478 (2004) Ex. Gaz.]

2. **Definitions.**—In these Rules, unless there is anything repugnant in the subject or context,—

- (a) "Ordinance" means the Freedom of Information Ordinance, 2002 (XCVI of 2002); and
- (b) all other words and expression used, but not defined herein, shall have the same meanings as are assigned to them in the Ordinance.

3. **Designated official.**—(1) The Head of every public body shall designate an official for a public body under his administrative control for the purpose of providing duly attested photocopy of the public record to the applicant, in accordance with the provisions of sections 7, 11, 12 and 13 of the Ordinance.

(2) The designated official shall be a senior officer of the public body not below BPS-19. In case no such official has been designated or in the event of the absence or non-availability of the designated official, the person incharge of the public body shall be the designated official, for the purposes of these rules.

4. **Application for obtaining information.**—(1) Subject to sub-section (2) of section 12 of the Ordinance, any citizen of Pakistan may apply on the Application Form as set out in Annexure-I for obtaining photocopy of the public record available with the respective public body alongwith an initial fee of fifty rupees for ten or less than ten pages to be deposited with the Cash Branch of the respective department under proper receipt or in the State Bank of Pakistan or National Bank of Pakistan or Treasury under the following heads of account, namely:—

(a)	major head	1300000	other receipts;
(b)	minor head	1390000	other; and
(c)	detailed head	1391221	fee payable for obtaining information and copies of public record.

(2) An amount of five rupees per page of photocopy shall be deposited in the heads of account specified in sub-rule (1) of rule 4 for every additional page (standard size) if the number of the pages of the record requested exceeds ten pages per requisition.

(3) In case of any Board, Commission, Council or other body established by, or under, a Federal law, charges shall be deposited in their respective heads of account.

(4) Subject to the availability of the facility each public body shall make available the Application Form (Annexure-I) on its website.

5. **Procedure for disposal of application.**—The designated official of every public body shall give an intimation to the applicant in the form as set out in Annexure-II and duly attested photocopy of public record subject to the provisions of rules 6 and 7 except such information as is exempted under sections 8, 14, 15, 17 and 18 of the Ordinance, as well as, any other instructions of the Government restricting the disclosure of information by the public body concerned.

6. **Procedure for filing of complaint with the head of public body.** In case the requisite information is not provided by the designated official of a public body within twenty-one days, the applicant may, file a complaint with the head of that public body and the head of such public body shall dispose of the complaint under intimation to the complainant within thirty days of its receipt. In case the application is sent through mail it shall be disposed of within prescribed time limit beginning from the date of the receipt in the office concerned.

Annexure

[See rule

APPLICATION FORM
FOR OBTAINING RECORD UNDER
FREEDOM OF INFORMATION ORDINANCE, 2002(XCVI OF 2002)

Name of the applicant_____

NIC No._____ (attach a photocopy of the NIC No.)

Father's Name_____

Address_____

Phone No._____

Name of the Public Body from which information is to be obtained_____

Subject matter of record requested_____

Nature of the record requested_____

Purpose of acquisition of the information or record_____

DECLARATION

- (a) Application Fee of Rs.50/- (Non-refundable) has been deposited with the Cash Branch of the department or in State Bank of Pakistan or National Bank of Pakistan or Treasury———vide challan or receipt No. ——dated——, an original copy of which is attached.
- (b) The information obtained would not be used for any purpose other than specified above.

Signature of the Applicant

Annexure-II

[See rule 5]

PROFORMA FOR INTIMATION TO THE APPLICANT

Subject:_____

Reference your application dated_____for supply of photocopies of the record regarding_____

Your request has been considered and accepted/rejected by the competent authority.

2. You are requested to deposit an additional amount of Rs._____ (Rupees_____), for additional_____pages of photocopies (@ Rs. 5/- per page), with the Cash Branch of the department or in the State Bank of Pakistan or National Bank of Pakistan or Treasury under the heads of account mentioned below:

"Major Head 1300000	Other Receipts
Minor Head 1390000	Others
Detailed Head 1391221	Fee payable for obtaining information from, and copies of Public Record"

3. Your request is regretted as the same is not permissible under the provisions of the Freedom of Information Ordinance, 2002 (XCVI of 2002) for the reasons that _____

Signature of the Designated Officer
Date _____

To

[No.F.3-33/2004-G&C.]

Sd/-
MUHAMMAD ASHRAF,
Deputy Secretary (Admin)

